

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400187	ALLEN VS MCANDREWS	MOTION TO COMPEL: ANSWER/RESPONSE TO FORM INTERROGATORIES FORM INTERROGATORIES 305.1, 305.11, 7.1 AND 7.3, FURTHER ANSWERS/RESPONSES TO INTERROGATORIES FORM INTERROGATORIES 305.1, 305.11, 7.1, 7.3 BY JOHN EDWARD MCANDREWS

Tentative Ruling:

Moving party: Defendant John Edward McAndrews
Represented by: Knez Law Group, LLP

Responding party: Plaintiffs Philip Allen and Wayne Cox
Represented by: Guralnick, Gilliland & Garcia

Plaintiffs Phillip Allen and Wayne Cox, individually and as trustees of the Allen-Cox Family Trust allege that they entered into a building construction contract with Defendant John McAndrews dba McAndrews Mountain Construction for a custom home. John McAndrews hired Defendant Caleb McAndrews dba McAndrews Construction to perform brush clearing and concrete work. Plaintiffs discovered water intrusion through the walls and floors. Plaintiffs then hired Caleb to perform mitigation work, without a contract, which failed to stop or mitigate the water intrusion. Defendants Justin Jones dba Idyllwild Backhoe, Rainbow Gutter Co. and Julio Sevillano also performed work on the property.

The operative pleading is the Second Amended Complaint (SAC) filed 2/4/25 for: (1) negligence; (2) nuisance; (3) negligence per se; (4) breach of contract; (5) breach of express warranty; (6) breach of implied warranty; and (7) payment on contractor's license bond (against Western Surety Company).

On 6/18/26, the McAndrews filed their operative First Amended Cross-Complaint (FAXC) against Plaintiffs and David J. Lilieholm for: (1) equitable indemnity; (2) third party negligence; (3) breach of contract; (4) breach of contract; (5) breach of covenant of good faith and fair dealing; and (6) breach of covenant of good faith and fair dealing.

Trial is set for November 20, 2026.

Defendant John Edward McAndrews ("Defendant") now moves to compel Plaintiff Phillip Allen ("Allen") to provide further responses to Form Interrogatories, Nos. 305.1, 305.11 and supplemental Interrogatories; and Plaintiff Wayne Cox ("Cox") to provide further responses to Form Interrogatories 7.1 and 7.3. John also requests the court impose monetary sanctions against Plaintiffs and Plaintiff's counsel, Ryan Garcia, in the amount of \$3,960 or evidentiary sanctions.

In opposition, Plaintiffs oppose and argue the motion lacks merit and should be denied. Allen argues John never met and conferred as to Nos. 305.1 and 305.11. Cox argues his responses to Nos. 7.1 and 7.3 fully comply with the Civil Discovery Act and he answered each subsection based upon all information reasonably available after a reasonable inquiry. Defendant never notes what information he believes is missing. The responses are complete and not evasive. Plaintiffs argue the request for evidentiary sanctions is completely unsupported and monetary sanctions are not appropriate given the timely responses, voluntarily supplement of No. 7.3 after the motion was filed and good faith compliance with the Discovery Act.

In reply, Defendant argues the responses are not Code-compliant. He argues sanctions are appropriate because Defendant misused the discovery process.

Analysis

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P., § 2030.300(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) Responses were served April 6, 2026 and the motion was timely filed May 7, 2026.

The parties are required to meet and confer. (C.C.P., §§ 2030.300(b), 2031.310(b), 2033.290(b).) A single letter followed by a response of refusal may be sufficient in certain circumstances to constitute a proper meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) However, the court will also consider the time available before the motion deadline, the extent to which the responding party was complicit in the lapse of time, and the prospects of success through meet and confer. (*Id.* at 432-433.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and “[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (*Id.* at 1293 [internal quotation marks omitted].)

Here, there was no effort by Defendant to meet and confer as to Allen's responses to Nos. 305.1 and 305.11. (See Knez Decl., Exh. K, p. 2.) Plaintiffs argued this in opposition, and Defendant failed to address the issue in reply. The motion may properly be denied as to Nos. 305.1 and 305.11 for failure to meet and confer.

As to Cox's responses to Form Interrogatories Nos. 7.1 and 7.3, on April 7, 2026, Defendant sent a meet and confer letter stating the responses were not sufficient. (See Knez Decl., Exh. K, p. 2.) On April 10, 2026, Cox provided further responses. (Garcia Dec. ¶¶ 4, 7). On April 24, 2026, Defendant sent Cox another meet and confer letter stating "We must have complete answers to each part," regarding Nos. 7.1 and 7.3. On April 27, 2026, Plaintiffs provided Defendant with further responses to Cox's General Form Interrogatories Nos. 7.1 and 7.3 and broke each response into subparts as requested by Defendants. On April 29, 2026, Defendant sent another letter stating the further response to No. 7.3 was "nothing more than a regurgitation of what you previously provided." (Knez Decl., Exh. L.) On May 11, 2026, after the motion was filed, Cox served a supplemental response to No. 7.3 by preparing a compilation and summary of repair costs. Defendant contends the supplemental response is defective. However, the parties have not met and conferred on the supplemental response.

Accordingly, the Court continues the matter and orders the parties to meet and confer via phone, videoconference or in person as to Nos. 7.1 and 7.3 only within 15 days. If there are any outstanding issues, the parties are to submit a joint separate statement 5 court days before the next hearing indicating what discovery is still at issue. No further briefing is allowed.

Continue for meet and confer as to Nos. 7.1 and 7.3 only. Hearing continued to 9/11/2026 at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402863	CASTELLANOS VS BUENROSTRO	MOTION TO COMPEL BY RAUL BUENROSTRO, ETELBINA BUENROSTRO

Tentative Ruling:

Moving party: Defendants, Raul and Etelbina Buenrostro ("Defendants")
Responding party: Plaintiff, Salvador Castellanos ("Plaintiff")

Now before the Court is Defendants' motion to enforce settlement agreement entered by the parties after a trial. Plaintiff sued Defendants for partition of a farm property they jointly own, which is commonly known as 8855 Victoria Avenue, Riverside, California.